

22STCV17435 22STCV17435

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-07-20

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PLAINTIFF GLENEICE

KIDD'S MOTION TO REOPEN DISCOVERY

Motion filed on May 1, 2026.

MOVING PARTY: Plaintiff, Gleneice Kidd

RESPONDING PARTY: Defendant, Alpha Beta Company dba Food 4 Less

NOTICE: OK.

RELIEF REQUESTED: Plaintiff seeks an order reopening fact and expert discovery following the continuance of trial.

RULING: Granted in part.

BACKGROUND

Gleneice Kidd (Plaintiff) filed the Complaint on May 26, 2022 against Food 4 Less of Southern California, Inc. and Manager Gabriel, alleging premises liability arising from a May 31, 2020 incident. Alpha Beta Company dba Food 4

Less, erroneously sued as Food 4 Less of Southern California, Inc. (Defendant), filed an Answer on October 10, 2023.

On March 10, 2026, the Court granted the parties' stipulation to continue trial. The Court continued the final status conference from May 1, 2026 to April 30, 2027 and trial from May 11, 2026 to May 10, 2027. The Court struck the proposed provision continuing all dates calculated from trial and ordered: "Discovery is not reopened absent court order. Only statutory deadlines expressly tied to the new trial date are recalculated by operation of law."

On May 1, 2026, Plaintiff filed this motion, supported by the declaration of Robert L. Booker II. On July 7, 2026, Defendant filed an opposition, supported by the declaration of Elnoz Faiazi. On July 9, 2026, Plaintiff filed a reply, supported by a supplemental declaration of Booker.

LEGAL STANDARD

"On motion of any party, the court may grant leave to complete discovery proceedings, or to have a motion concerning discovery heard, closer to the initial trial date, or to reopen discovery after a new trial date has been set.¿ This motion shall be accompanied by a meet and confer declaration under Section 2016.040."¿ (Code Civ. Proc., § 2024.050, subd. (a).)¿

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"In exercising its discretion to grant or deny this motion, the court shall take into consideration any matter relevant to the leave requested, including, but not limited to, the following: (1) The necessity and the reasons for the discovery.¿ (2) The diligence or lack of diligence of the party seeking the discovery or the hearing of a discovery motion, and the reasons that the discovery was not completed or that the discovery motion was not heard earlier.¿ (3) Any likelihood that permitting the discovery or hearing the discovery motion will prevent the case from going to trial on the date set, or otherwise interfere with the trial calendar, or result in prejudice to any other party.¿ (4) The length of time that has elapsed between any date previously set, and the date presently set, for the trial of the action."¿ (Code Civ. Proc., § 2024.050, subd. (b)(1)-(4).)¿¿¿

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to extend or to reopen discovery, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2024.050, subd. (c).) 22

DISCUSSION

Plaintiff seeks to reopen fact and expert discovery concerning her continuing medical treatment and resulting damages. Defendant argues that the request would reopen discovery “broadly and prospectively, without identifying with specificity what discovery is necessary, why it is necessary, and what targeted scope and deadlines would avoid undue burden.” (Opp. at p. 4.) Defendant alternatively requests that reopening be limited to updated medical records and billing statements and that non-expert depositions and written discovery remain closed absent “a further, particularized showing of necessity and diligence.” (Opp. at p. 6.)

Necessity and Reasons for Discovery

Plaintiff’s counsel disclosed a February 3, 2026 MRI report and billing statement after learning that Plaintiff remained in treatment. (Booker Decl. ¶ 4, Ex. 1.) The parties then stipulated that “[b]oth counsels need to determine what other medical records exist and what expectations there are for future treatment.” (Booker Decl. ¶¶ 5-6, Ex. 2 at p. 2.) Defendant later requested authorization to obtain updated medical records and stated that it would otherwise “be forced to move to reopen discovery.” (Supp. Booker Decl. ¶¶ 2-3, Ex. 4.) Plaintiff produced additional records on July 7, 2026, reflecting treatment on June 3, 2026. (Supp. Booker Decl. ¶ 4, Ex. 5.)

This showing establishes the necessity of updated medical records, billing information, future treatment recommendations, and reasonable follow-up discovery concerning Plaintiff’s claimed damages. Plaintiff has not identified with specificity a need for broader reopening. This factor favors limited reopening.

Diligence of the Party Seeking Discovery

After the March 10, 2026 order stated that discovery would

not reopen automatically, Plaintiff attempted to supplement her medical disclosures on April 20, 2026. Defendant responded that it would seek to exclude records not disclosed before the cutoff, and Plaintiff then filed this motion. (Booker Decl. ¶¶ 7-10, Exs. 2-3.)

The June 3, 2026 treatment records could not have been produced before the treatment occurred, and Plaintiff produced them upon receipt. (Supp. Booker Decl. ¶ 4, Ex. 5.) Plaintiff acted with sufficient diligence as to discovery arising from her continuing treatment, but has not shown why other discovery that could have been completed earlier should now be reopened. This factor favors limited reopening.

Interference with Trial and Prejudice

Trial is set for May 10, 2027. (Booker Decl. ¶ 7, Ex. 2 at p. 3.) The Court finds discovery confined to Plaintiff's continuing treatment and resulting damages can be completed without interfering with the trial date.

Defendant argues that broad reopening would impose additional burden and expense and could lead to "serial supplementation and follow-on discovery disputes." (Opp. at p. 5.) Defendant does not identify a specific conflict with the trial schedule or concrete prejudice from discovery limited to the new treatment evidence. Limiting reopening to that evidence and the resulting damages addresses Defendant's concerns. This factor favors limited reopening.

Length of Time Between Trial Dates

The prior trial date was May 11, 2026. Trial is now set for May 10, 2027. (Booker Decl. ¶ 7, Ex. 2 at p. 3.) The approximately one-year interval provides sufficient time to complete the limited discovery. This factor favors reopening.

Scope of Reopening

Defendant's request to limit reopening to medical records and billing statements is too narrow. The parties' stipulation and Defendant's request for updated medical authorizations show that Plaintiff's continuing treatment may require follow-up written discovery, third-party discovery, treating-provider depositions, and expert discovery. (Booker Decl. ¶ 6, Ex. 2

at p. 2; Supp. Booker Decl. ¶¶ 2-3, Ex. 4.)

Discovery will therefore be reopened only as to Plaintiff's medical treatment from February 3, 2026 forward, related medical records and billing, treating providers, future treatment recommendations, and damages allegedly resulting from that treatment.

Sanctions

Neither party noticed a request for monetary sanctions, so none are awarded.

CONCLUSION

Plaintiff's Motion to Reopen Discovery is GRANTED IN PART.

Fact and expert discovery, including motions concerning that discovery, is reopened solely as to Plaintiff's medical treatment from February 3, 2026 forward, related medical records and billing, treating providers, future treatment recommendations, and damages allegedly resulting from that treatment. The parties may conduct written discovery, third-party discovery, treating-provider depositions, and expert discovery reasonably directed to those subjects. The deadlines for this limited discovery, including motions concerning that discovery, shall be calculated from the May 10, 2027 trial date. Discovery remains closed in all other respects.

No monetary sanctions are imposed.